

Rajasthan State Commission for Women Regulations, 2007

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State of Rajasthan - Act

Rajasthan State Commission for Women Regulations, 2007

RAJASTHAN

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Rajasthan State Commission for Women Regulations, 2007

Rule RAJASTHAN-STATE-COMMISSION-FOR-WOMEN-REGULATIONS-2007 of 2007

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Rajasthan State Commission for Women Regulations, 2007

Published vide Notification No. F. 2(116) Estt./RSWC/2007/2451, dated 10.8.2007

Last Updated 20th May, 2019

No. F. 2(116) Estt./RSWC/2007/2451. - In exercise of the powers conferred by sub-section (2) of section 15 of the Rajasthan State Commission for Women Act, 1999 (Act

No. 4 of 1999

), the Rajasthan State Commission for Women with the prior approval of the State Government, hereby makes the following regulations for regulating its procedure and the disposal of its business; namely: -

1.

Short title and commencement.

(1)

These regulation may be called the Rajasthan State Commission for women Regulation, 2007.

(2)

They shall come into force on the date of their publication in the Rajasthan Gazette.

2.

Definitions.

(1)

In these regulations, unless the context otherwise requires:-

(a)

"Act" means the Rajasthan State Commission for Women Act, 1999 (Act

No. 4 of 1999

),

(b)

"Chairperson" means the Chairperson of the Commission,

(c)

"Member Secretary" means the Member Secretary of the Commission under section 3 of the Act, and

(d)

"Commission" means the Rajasthan State Commission for Women constituted under section 3 of the Act.

(2)

Words and Expression used but not defined in these regulations shall have the meanings respectively assigned to them in the Act.

3.

Meetings of the Commission.

(1)

Ordinary meeting of the commission shall be held at least once in two months on the day and time fixed by the chairperson the Commission.

(2)

The Member Secretary shall cause to circulate the notice and agenda for the ordinary meeting of the Commission in such a manner that it is received by the member at least seven days before the date fixed for the meeting :

Provided that the chairperson herself or on a request in writing made to her by atleast three members may convene a special meeting of the Commission to consider any special issue of immediate nature.

(3)

On receipt of a request referred to in the proviso to sub-regulation (1), the chairperson shall, in consultation with the Member Secretary, fix a date and time for the special meeting, such date not being later than three days from the date of the notice receipt of request.

(4)

As soon as the date and time of the special meeting is decided, a notice of special meeting and the agenda thereof shall be sent to all the members at least twenty-four hours before the time fixed for such a meeting.

(5)

All meetings of the Commission shall be presided over by the chairperson and in case the chairperson is not able to attend any meeting of the Commission, the members present shall elect among themselves any member to preside over such a meeting.

(6)

The quorum for every meeting of the Commission shall be three including chairperson.

(7)

All question required to be decided by the Commission shall be decided by the majority of the votes of the members present and voting, and in case of equality of votes the chairperson or the member presiding, as the case may be, shall have a casting vote.

4.

Matters to be considered in an ordinary meeting.

- The Commission shall consider and take a decision in an ordinary meeting on all or any of the following matters, namely:-

- (a) any of the function assigned to it under section 11 of the Act and the time frame within which the function are to be performed.
- (b) identification of special issues, procedure for dealing with such issues;
- (c) call for special studies or investigation into specific problems or situations arising out of discrimination and atrocities against women and identify the constraints so as to recommend strategies for their removal;
- (d) procedure for inspection of jails, remand homes, etc.;
- (e) cases involving funding of litigation affecting a large body of women;
- (f) any reports which are placed by the Member-Secretary before the Commission with the approval of the chairperson.
- (g) amendment of these regulations.
- (h) the annual and periodical reports and the annual statement of accounts of the commission.

5.

Conduct of meetings.

(1)

At an ordinary meeting of the Commission, business shall be conducted in the following order, namely:-

- (a) the minutes of the previous ordinary meeting and any special meeting held shall be read over and confirmed;
- (b) the business postponed at the previous meeting shall be considered;
- (c) the reports of tours undertaken by the chairperson or any member shall be discussed;
- (d) subjects included in the agenda shall be considered;
- (e) date of next meeting shall be decided;
- (f) any other subject may also be considered with the permission of the chair;

At a special meeting, the only special issues for which the said meeting has been called shall be considered.

6.

Minutes of the meeting.

(1)

Minutes of the proceedings of every meetings of the Commission including special meetings shall be recorded in a minutes book immediately and in no case later than seven days from the date of the meeting and the minutes book shall be signed as soon as practicable by the chairperson or the presiding officer of such meeting, as the case may be and shall be kept open for inspection of all members.

(2)

The names of the members present at each meeting shall also be recorded in the minutes book.

(3)

A copy of the minutes of each meeting shall be circulated by the Member Secretary or any other officer of the Commission not below the rank of Deputy Secretary duly authorized by the Member Secretary to all members of the Commission for information and also to concerned officers and employees of the Commission for preparing 'Action Taken' note thereon.

7.

Decisions to be taken by the Commission.

- All decisions with respect to performance of all or any of the function referred to in section 11 of the Act shall be taken in a meeting of the Commission:

Provided that, if in the opinion of the Member Secretary any case requires immediate approval of the Commission, she may get the approval of the Members and the Chairperson by circulation.

8.

Powers and Responsibilities of the Chairperson.

- In addition to her general powers, the chairperson, as the head of the Commission, shall:-

- (a) preside over the meeting of the Commission unless she is incapacitated to do so due to her absence for any reason;
- (b) allocate subjects and responsibilities among the members;
- (c) approve tour programmes of all members;
- (d) decide as to the date, time and place of a meeting of the Commission;
- (e) provide general guidance for preparation of annual and periodical reports of the Commission.
- (f) provide general guidance on any matter referred to her by the Member Secretary or any other member;
- (g) convergence and coordination with the State Government on policy matters affecting women.

9.

Powers and Responsibilities of the Members.

- In addition to participating in all meetings of the Commission and sharing the collective responsibilities of the Commission, each Member shall:-

- (a) attend the subjects allotted to her by the chairperson;
- (b) place before the meeting of the Commission for consideration any matter which, according to her, is of special importance;
- (c) deal with complaints allotted to her;
- (d) prepare relevant material for inclusion in the annual and periodic reports and in respect of subjects dealt with by her;
- (e) undertake tours that she feels to be necessary for discharge of her functions as a member with the approval of the chairperson and submit a report thereon as soon as possible but not later than fifteen days after return from the tour. A copy of the tour report shall also be placed before the next ordinary meeting of the Commission.

10.

Powers and responsibilities of the Member Secretary.

- (1) The Member Secretary shall be the administrative head of the Commission and exercise administrative and financial control on the Secretariat of the Commission.
- (2) Without prejudice to the generality of the foregoing powers, Member Secretary shall:-
 - (a) prepare agenda and issue notice for the meetings of the Commission;
 - (b) record minutes of all meetings of the Commission;
 - (c) supervise the smooth functioning of the Commission including its secretariat officers and employees;

- (d) supervise the receipt of grants from the Government under section 18 of the Act and their disposal as also donations, contributions etc. to the Commission;
- (e) supervise the maintenance of proper accounts and records, arrangement for audit of accounts, and forwarding of such audited reports to the Government.
- (f) authenticate and communicate orders or decisions of the Commission to appropriate authorities;
- (g) prepare draft Annual Report & periodical reports and place them before the Commission;
- (h) examine all cases where it has been felt necessary to invoke powers under section 10 of the Act;
- (i) authenticate all summons etc. to be issues to any party.

(3)
The Member Secretary shall keep the Chairperson informed in exercising the powers in appropriate cases and place matters before the Commission.

11.
Registration of Complaints.

(1)
All complaints received in the Commission including complaints received by the chairperson or any Member by name shall be forwarded to the complaints unit of the Commission for registration.

(2)
The complaints unit shall register the complaints in a register to be maintained for the said purpose and submit to the Chairperson/Member concerned a report, as to the suggested course of action within one week.

(3)
No complaint shall be entertained by the complaint's unit unless:-

(a)
It is in writing duly signed or bears the thumb impression either of the complaint or a person related to her or has been made by a registered voluntary agency working for the cause of women;

(b)
The complaint does not relate to cases covered under section 21 of the Act;

(c)
It does not concern matters which are sub-judice or matters already decided by courts.

12.
Taking suo-moto cognizance of the grievances.

- The Commission may take suo moto notice of any case reported as news items in the media in which any unfair practice as defined under clause (d) of section 2 of the Act appears to have taken place. In urgent matters demanding immediate action, the chairperson or the member may take action required for the case. The matter shall subsequently be laid before the Commission for approval, as early as possible. The action taken in such cases will be deemed to have been taken on behalf of the Commission.

13.
Direction for examination of complaints.

- On being satisfied by the facts narrated in the complaint and the attached documents, if any, or the new item published that there is a prima facie case of unfair practice as defined in clause (d) of section 2 of the Act and the matter demands urgent action, the Commission may direct the competent and related authority to examine the case in the light of the points raised by the aggrieved party and to submit a factual report to the Commission:

Provided that, if the Commission has reason to believe, that the enquiry or investigation has been biased or prejudiced against the complaint the Commission may issue such directives as are necessary to mitigate the rightful grievances of the adversely affected party.

14.

Inquiry into unfair practice.

- In case, the Commission or the chairperson feels that it is necessary to give an opportunity of being heard to the opposite party, it or she may issue notice in Form A for appearance before it or her to rebut the allegations made against him/her/them in the complaint and/or the report of inquiry/investigation.

15.

Visit for on the spot study.

- The chairperson or any other Member may undertake visit for an on - the - spot study and where such a study is undertaken by chairperson or any Member, a report thereon shall be furnished to the Commission, as soon as possible, but not later than 15 days from the date of visit.

From - A

(See Regulation 14)

Rajasthan State Commission for Women

No.Dated, the

To,

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Whereas a petition/complaint/information has been received by the State Commission for women from
/press News under captionappearing in dated as enclosed.

And whereas the State Commission has decided to investigate/inquire into the matter in pursuance of powers conferred upon it under section 10 of the Rajasthan State Commission for Women Act, 1999. Now therefore, you are hereby directed to appear before the State Commission in person or by a representative or through a pleader on the of at hours. If you fail to comply with this direction without lawful excuse the Commission shall take expert decision in your absence.

Member Secretary

Rajasthan State Commission for Women

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